

		this instance, Cliff Jarmie, Monica Serratos and Fernando Serratos acted as agents of USA Wrestling in committing the acts complained of. In the absence of argument or evidence in the moving papers pertaining specifically to Cliff Jarmie, Monica Serratos and Fernando Serratos and specifically addressing USA Wrestling's relationship with these defendants, the court cannot find as a matter of law that these individuals were not agents of USA Wrestling and that USA Wrestling cannot be vicariously liable for their conduct. Accordingly, the motion is DENIED. Plaintiff's request for judicial notice is DENIED. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) The Court declines to rule on USA Wrestling's evidentiary objections as not material to the disposition of the motion. (<i>Code Civ. Proc.</i>, § 437c(q).) <i>Counsel for Plaintiff shall give notice.</i>
13.	Randall v. Morena 21-1193717	Before the Court is the Motion for Summary Judgment, or in the Alternative, for Summary Adjudication, filed on 12/18/25 by Defendants Farzin Morena and Jai Ho Capital ("Defendants"). The Motion is DENIED, as it fails to show that the claims presented by Plaintiff Paul Randall ("Plaintiff") in his Second Amended Complaint ("SAC") are necessarily barred as a matter of law. Defendants assert that Plaintiff's claims are time-barred, as the evidence shows that they accrued by no later than July 2018. (UF 22-26.) But Defendants have not shown that this is so as to the Fifth Cause of Action, for Conversion. Summary Judgment thus cannot be obtained here, based on limitations arguments. Nor have Defendants shown that the claims would be time-barred to the extent that they concern Plaintiff's alleged collateral, which is addressed in each claim in the SAC. Summary adjudication is available only if it completely disposes of a cause of action, affirmative defense, claim for damages, or issue of duty. (<i>C.C.P.</i> § 437c(f)(1).) That is not shown here. Defendants also assert that all claims in the SAC are barred based on illegality. Illegal contracts are unenforceable. (<i>Homami v. Iranzadi</i> (1989) 211 Cal.App.3d 1104, 1111-1113.) But although the alleged oral agreement concerning the check may have been designed for unlawful purposes such as tax evasion and/or money laundering, that has not yet been established. Defendants deny that any such agreement existed (UF 12-18), and Plaintiff has not conceded such intent (UF 30). Defendants also have not attempted to show that there was illegality regarding the claims as to the alleged collateral.

		Defendants also argue, as to the First Cause of Action, that there is no enforceable oral contract alleged as Plaintiff lacks standing to assert a claim as to funds paid to Defendants from a third party. But Plaintiff asserts that those funds were actually his and were directed to Defendants to pay an existing debt. (See UF 20, 30.) In that event, standing would be shown. Defendants also argue that the alleged oral agreement lacked consideration. But Plaintiff asserts that the oral agreement was, at least in part, a negotiated agreement to pay an existing debt. (UF 20.) Lack of consideration is thus not necessarily established here. The Motion is therefore DENIED. The Requests for Judicial Notice, filed as ROAs 464 and 543, are GRANTED as to the existence of the records, but not as to the truth of any disputed fact asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Defendants' Evidentiary Objections, filed as ROA 560, to the extent directed to material evidence, are OVERRULED. (C.C.P. § 437c(q).) Defendants are to give notice of this ruling
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